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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, June 1, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Angola v. Children's Hospital of Orange County, 2025-01524204	Motion to Strike Portions of Complaint - GRANTED Plaintiff does not assert any causes of action for which punitive damages could be awarded. Demurrer to Complaint – SUSTAINED WITH LEAVE TO AMEND The court requires that parties e-file documents through an electronic filing service provider (ESFP). If Plaintiff submitted his complaint through the ESFP before the statute expired, then it would not be time-barred. Plaintiff's evidence does not establish conclusively that the complaint was timely filed, but Plaintiff may be able to allege facts to do so. The court finds that the decedent became a trespasser when he entered the employee only elevator, and therefore Plaintiff cannot state a claim for breach of any duty owed by Defendant to Decedent and/or Plaintiff. Additionally, Plaintiff has failed to set forth facts sufficient to state a cause of action for negligent hiring. Case Management Conference
102	Barrera v. Hail Mary, Inc 2024-01421079	Motion for Leave to File Amended Complaint - GRANTED Plaintiff Maria Munoz Barrera's unopposed motion for leave to file a First Amended Complaint is GRANTED. Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...." (Code Civ. Proc., § 473, subd. (a).) "[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (Melican v. Regents of University of

		California (2007) 151 Cal.App.4th 168, 175.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Ibid.) Here, the proposed amendment involves additional allegations and legal theories concerning the same incident that is already alleged in the Complaint. This case is in its early stages, and no party has opposed the motion. The Court therefore exercises its discretion in allowing the amendment. Plaintiff shall file the proposed first amended complaint within five (5) days of this order. Plaintiff to give notice.
104	Castillo vs. Yu 2024-01419781	Motion to Set Aside/Vacate Dismissal – DISMISSED WITHOUT PREJUDICE The court must vacate dismissals “resulting” from the attorney's “mistake, inadvertence, surprise, or neglect.” (CCP § 473(b).) Mandatory relief is available only where the attorney failed adequately to oppose a motion to dismiss, not where the dismissal results from the attorney's conduct preceding the motion to dismiss. Section 473(b) is not “the perfect escape hatch from the dismissal statutes.” (Graham v. Beers (1994) 30 Cal.App.4th 1656, 1661.) Here, Plaintiff seeks relief from the 06/05/2025 dismissal order. (ROA 40) Attorney Joseph Trenk, who was Plaintiff’s attorney in June 2025, declares, “In November 2024 I became seriously ill and developed circulatory complications in my lower extremities. I was hospitalized and, in December 2024, underwent surgery that resulted in the removal of two toes. I was out of my office for approximately two months recovering from this unexpected condition and was unable to attend to my pending cases.” (Dec. of Trenk ¶3.)

		Attorney Trenk’s declaration suggests that he returned to work by March 2025 at the latest. He appeared remotely at a hearing on 04/07/2025 on an Order to Show Cause re: Dismissal. (ROA 28) “Illness of counsel which actually disables him from timely compliance with the statutory rules of procedure constitutes excusable neglect if he moves promptly for relief as soon as his disability terminates or attenuates to the extent that a reasonable man under similar conditions would take action for relief. [Citations.] On the other hand, it has been held that illness occurring after the time for filing answer has expired without explanation for failure to answer within the regular statutory time does not constitute excusable neglect. [Citation.] If the illness is such that there was no opportunity to obtain substitute counsel, it is excusable [citation], but contrariwise if there is opportunity to obtain substitute counsel to prevent the default from occurring [citation]. [¶] Discretion is abused in granting relief from default if the moving party's supporting affidavit or declaration fails to set forth facts sufficient to constitute grounds for relief. [Citation.]” (Transit Ads, Inc. v. Tanner Motor Livery, Ltd. (1969) 270 Cal.App.2d 275, 280–281.) Attorney Trenk’s declaration fails to explain why, after he returned to work, he failed to prosecute this case and allowed the dismissal to be entered on 06/25/2025, and therefore fails to provide evidence sufficient to establish excusable neglect. The motion is DENIED without prejudice. Court clerk to give notice.
106	De La Torre v. Peterson Bros. Construction, Inc. 2024-01398380	Motion for Terminating Sanctions Defendants Peterson Brothers Construction, Inc., Juan Zarate, Alma Sanchez, and Jessida Macias (collectively “Defendants”) seek an order for terminating sanctions against Plaintiff David Zazueta De La Torre (“Plaintiff”) in the form of striking out or dismissal of Plaintiff’s First Amended Complaint, with prejudice, on the grounds that Plaintiff has willfully and repeatedly failed to comply with discovery obligations and this Court’s

September 15, 2025 Order compelling Plaintiff to produce verified responses to Defendants' Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production of Documents, Set One, and pay monetary sanctions to Defendants in the total sum of \$1,665.00

CCP § 2023.010 states, in part, as follows: "Misuses of the discovery process include, but are not limited to, the following: . . . [¶] (d) Failing to respond or submit to an authorized method of discovery. . . . [¶] (g) Disobeying a court order to provide discovery."

CCP § 2023.030 provides, in part, as follows: "To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: [¶] (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process. . . .(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. . . .(c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. . . .(d) The court may impose a terminating sanction by one of the following orders: [¶] (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. . . ."

Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992, explains, "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. [Citations.] The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should 'attempt [] to tailor the sanction to the harm caused by the withheld discovery.'" [Citation.] The trial court cannot impose sanctions for misuse of the

discovery process as a punishment. [Citations.] [¶] The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.] (Footnote 5 omitted.)”

Lee v. Lee (2009) 175 Cal.App.4th 1553, 1559 states, “Code of Civil Procedure section 2023.030, subdivision (c), provides that the trial court may sanction any party engaging in a misuse of the discovery process by prohibiting that party from introducing designated matters in evidence. A failure to respond to an authorized method of discovery may constitute misuse of the discovery process. [Citation.] Nevertheless, absent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful. [Citation.]” (Emphasis in original.)

Here, on September 15, 2025, this Court granted Defendants’ discovery motions against Plaintiff. (ROA 114) Notice of Ruling was mailed to Plaintiff on 9/16/2025. (ROA 116; Decl. of Hampton ¶6.) At the time Defendants filed this Motion on January 14, 2026, no responses had been provided or sanctions paid. (Decl. of Hampton ¶7.)

On August 11, 2025, the Court granted Attorney Molly Hoot and Lipeles Law Group, APC’s motion to be relieved as counsel for Plaintiff David Zazuela De La

		Torre. (ROA 106.) The Proof of Service of that Order was filed on April 1, 2026 POS filed. (ROA 149.) This motion for terminating sanctions was originally on calendar for March 30, 2026, but continued for service on both Plaintiff and Plaintiff's counsel (in an abundance of caution). Defendants served the motion and notice of continuance on Plaintiff and Plaintiff's (now former) counsel on March 30, 2026. (ROA 145, 151.) It is unclear to this court whether Plaintiff's failure to comply with the September 15, 2025 order is willful. The court therefore orders as follows: 1. The court orders counsel for Defendants to give notice of the court's ruling to Plaintiff and Plaintiff's former counsel on or before June 5, 2026, and file proof of service of that notice. 2. The court orders Plaintiff to provide verified responses to Defendants' Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production of Documents, Set One, on or before June 19, 2026. These responses must be personally served or delivered by overnight delivery to be received by June 19. 3. The court orders Plaintiff to pay sanctions in the amount of \$1665.00 to Defendants no later than June 19, 2026. Payment shall be in cash, certified check, cashier's check, or similar method of payment. 4. The motion for terminating sanctions is continued to Monday, June 15, 2026, at 9:00 a.m. If item #1 above has been complied with, and items #2 and #3 above have not been fully complied with, the court will grant the motion for terminating sanctions without further notice. No further briefing will be accepted regarding the motion for terminating sanctions.
107	Elias v. Jensen 2020-01139897	Motion to Compel Answers to Form Interrogatories - GRANTED Motion to Compel Further Responses to Special Interrogatories - GRANTED Motion to Compel Production – GRANTED IN PART AND DENIED IN PART Motion to Deem Facts Admitted – GRANTED

SANCTIONS AWARDED

Defendant Brown & Streza LLP (“Defendant” or “Brown & Streza”) filed the above discovery motions seeking orders compelling full responses by Plaintiff David Elias (“Plaintiff” or “Elias”), who is self-represented. Defendant also seeks sanctions against Plaintiff in connection with each motion. All discovery motions were timely filed and the necessary meet & confer process was complied with. No timely opposition has been filed by Plaintiff.

Form Interrogatories

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 408; Leach v. Superior Court (1980) 111 Cal.App.3d 902, 906.)

“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290(c).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 139.)

On September 15, 2025, Defendant served Plaintiff with First Amended Form Interrogatories – General, Set One.

(Declaration of Hanqiu “Ian” Liu (“Liu Decl.”), ¶ 2, Ex. A.) Plaintiff’s responses were due on or before October 20, 2025 – thirty (30) days after service, but Plaintiff has not served any response. (Liu Decl., ¶ 3; Reply Declaration of Stevie B. Baris, ¶ 8.)

As a result of Plaintiff’s failure to serve responses to the First Amended Form Interrogatories, Plaintiff has waived any objection to the interrogatories, including one based on privilege or on the protection for work product. (Code Civ. Proc. §§ 2030.290(a).) The motion to compel responses to Defendant’s First Amended Form Interrogatories is GRANTED. Plaintiff to serve verified, objection-free responses to Brown & Streza’s First Amended Form Interrogatories within 30 days.

With regards to sanctions, Plaintiff has not shown that he has acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Brown & Streza’s request for \$3,060 in monetary sanctions which includes 12 hours on this motion is not reasonable. The Court finds 3.0 hours to draft this motion, 2.0 hours to review any opposition and to draft a reply, and 2.0 hours to attend the hearing at an hourly rate of \$250 per hour to be reasonable, in addition to the \$60 filing fee. (Liu Decl., ¶ 7.)

Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$1,810 (\$250 x 7 hours + \$60) against Plaintiff, to be paid within 30 days.

Special Interrogatories

On September 15, 2025, Defendant served its First Amended Special Interrogatories, Set One, on Plaintiff by email and U.S. mail. (Liu Decl., ¶ 2, Ex. A.) Plaintiff served responses late on November 8, 2025, and did not serve a purported verification until December 12, 2025. (Liu Decl., ¶¶ 4, 7, Exs. B and D.) As Plaintiff served untimely responses, all objections have been waived.

Defendant Brown & Streza LLP (“Defendant” or “Brown & Streza”) moves for an order compelling Plaintiff to serve further, code-compliant responses, without

objections, to Defendant's First Amended Special Interrogatories (Set One), Nos. 1-73, and awarding monetary sanctions in the amount of \$4,060 against Plaintiff. The Motion is GRANTED, in its entirety, as follows.

Code of Civil Procedure section 2030.300(a) provides that a party propounding discovery may move for an order compelling a further response if an answer to a particular interrogatory is evasive or incomplete, or an exercise of the option to produce documents under Code Civ. Proc. section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general.

If a timely motion to compel has been filed, the burden is on the responding party to justify the adequacy of the response, the propriety of any objections, or the failure to fully answer the interrogatories. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) A party opposing discovery has an obligation to supply the basis for an objection asserted in response to discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 549 [party objecting to interrogatories has burden of supplying supporting evidence in response to a motion to compel].) Plaintiff has failed to do so.

The court finds that all objections have been waived as the Plaintiff served untimely responses.

Plaintiff failed to provide any response Special Interrogatory, Nos. 2, 6, 10, and 14.

Every response which includes the phrase, "not exclusive," is improper as it is not "as complete and straightforward as the information reasonably available to the responding party permits." (CCP § 2030.220(a).) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (CCP § 2030.220(b).) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable

and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party. (CCP § 2030.220(c).) Responses with the phrase “not exclusive,” also renders the response incomplete and/or evasive.

Responses to special interrogatories which seek the identification of persons and identification of documents are incomplete, including Special Interrogatory, Nos. 3, 4, 7, 8, 10, 11, 15, 16, and 34.

Plaintiff’s responses to the following special interrogatories are not responsive and/or are incomplete: Nos. 1, 5, 9, 12, 13, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, and 33.

Plaintiff’s only objection to Special Interrogatory Nos. 36-73 is that more than 35 special interrogatories were served. All objections have been waived, and this objection is overruled. Moreover, Defendant included a declaration with the special interrogatories authorizing the service of more than 35 special interrogatories. (CCP §§ 2030.030(a)(1) & (b), 2030.070, 2030.050.)

The Court GRANTS Brown & Streza motion to compel further responses to its First Amended Special Interrogatories, Set One, Nos. 1-73. Plaintiff to serve verified, further, objection-free responses within 30 days.

Brown & Streza’s request for \$4,060 in monetary sanctions, which includes 16 hours for this motion is not reasonable. The Court finds 8.0 hours to draft this motion, and 2.0 hours to review any opposition and to draft a reply at a hourly rate of \$250 per hour to be reasonable, in addition to the \$60 filing fee. (Liu Decl., ¶ 8.) Additional time to attend the hearing on the motion will not be awarded, as that time is being awarded in connection with the motion to compel responses to form interrogatories.

Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days.

Requests for Production

On September 15, 2025, Defendant served its First Amended Requests for Production, Set One, on Plaintiff by email and U.S. mail. (Liu Decl., ¶ 2.) Plaintiff did not serve responses until November 8, 2025, and did not serve a purported verification until December 15, 2026. (Liu Decl., ¶¶ 3, 6, Ex. D.) Plaintiff's responses were untimely. Therefore, all objections have been waived.

A demanding party may move for an order compelling a further response to a demand for inspection if a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc. § 2031.310(a).) The motion must set forth specific facts showing good cause justifying the discovery sought by the discovery request. (Code Civ. Proc. § 2031.310(b)(1).) For a request to produce documents, "a party who seeks to compel production must show 'good cause' for the request . . . but where, . . . , there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance." (Glenfed Develop. Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117.)

If the moving party demonstrates good cause, then the opposing party must justify any objections. (Kirkland v Superior Court (2002) 95 Cal. App. 4th 92, 98.)

While Brown & Streza asserts that documents relating to Plaintiff's vexatious litigant status are directly relevant to this litigation, Brown & Streza does not demonstrate good cause for requests for production related to Plaintiff's vexatious litigant status, namely Requests for Production, Nos. 33-38. Nor does Brown & Streza demonstrate good cause for seeking all documents relating to any court case or filing in which Plaintiff has participated and been self-represented in any California court from January 1, 2015, to the present (No. 39), and all documents showing sanctions imposed against Plaintiff in any litigation from January

1, 2015, to the present (No. 40). Therefore, the motion to compel is DENIED as to Requests for Production, Nos. 33-40.

The remaining requests for production of documents appear directly relevant to Plaintiff's claims in this action for constructive fraud, dependent financial abuse, legal malpractice, and breach of fiduciary duty relating to the trust and will at issue in this action. As Plaintiff has not filed an opposition, Plaintiff has not justified any objections. Additionally, Plaintiff's responses to Requests for Production, Nos. 1-32 and 41-60 are deficient.

A response to a request for production may consist of a statement that the responding party will comply, a statement that the responding party lacks the ability to comply, or an objection to the request. (CCP § 2031.210(a).) Plaintiff's responses to Requests for Production, Nos. 1-32 and 41-60 do not clearly provide that Plaintiff will comply, lacks the ability to comply, or is asserting an objection. To the extent that Plaintiff intends to comply with any request, no documents have been produced. (Liu Decl., ¶ 4; Reply Declaration of Stevie B. Baris, ¶ 9.)

Plaintiff's responses do not identify with particularity any documents being withheld, and do not clearly set forth the extent of the specific ground for the objection.

An objection that a document is "equally accessible" is not a proper objection to a request for production of documents.

Additionally, any other objections to a request for production, such as that it is overly broad, irrelevant, "unclean hands", "fraud", lacks foundation, assumes facts not in evidence, ambiguous, misleading, red herring, and compound, have been waived, and are not proper objections to a request for production of documents.

Lastly, to the extent that Plaintiff asserts attorney-client privilege or privacy objections (Nos. 41, 42, 47, 48, 49, 57), no privilege log has been provided. When a

responding party asserts claims of privilege or attorney work product protection, the responding party must provide sufficient factual information to enable the parties and the court to evaluate the merits of a claim, including, if necessary, a privilege log. (Code Civ. Proc. § 2031.240(c)(1); Riddell, Inc. v. Superior Court (2017) 14 Cal.App.5th 755, 772.)

Based on the foregoing, Brown & Streza's motion to compel further responses to First Amended Requests for Production, Set One, Nos. 1-60 is GRANTED. Plaintiff to serve further, verified, objection-free responses within 30 days subject to a privacy or privilege objection. Plaintiff to also serve a privilege log within 30 days, if applicable.

Brown & Streza's request for \$5,810 in monetary sanctions for 23 hours on this motion is not reasonable. The Court finds 8.0 hours to draft this motion, and 2.0 hours to review any opposition and to draft a reply at a hourly rate of \$250 per hour to be reasonable, in addition to the \$60 filing fee. (Liu Decl., ¶ 8.)

Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days.

Requests for Admission

Here, on September 15, 2025, Defendant served its First Amended Requests for Admission, Set One, on Plaintiff. (Declaration of Hanqiu Liu ("Liu Decl."), ¶ 2, Ex. 1.) Plaintiff did not serve any response until November 8, 2025. (Liu Decl., ¶ 4, Ex. 2.) Those responses were not verified at the time they were served and the verification dated and served on December 12, 2025, is not signed. (Liu Decl., ¶¶ 4, 5; Reply Declaration of Stevie B. Baris, ¶¶ 9, Ex. E.) Plaintiff's responses do not contain only objections and as the verification is not signed, the responses are tantamount to no response at all. (CCP § 2033.210(a), § 2033.240(a); Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636; Zorro Inv. Co. v. Great Pacific Securities Corp. (1977) 69 Cal.App.3d 907, 914.)

Defendant, Brown & Streza LLP moves for an order deeming the matters specified in Defendant's First Amended Requests for Admission, Set One, Nos. 1-65 admitted as against Plaintiff, or alternatively, compelling Plaintiff to serve further, verified responses, without objections, to Defendant's First Amended Requests for Admission, Set One, Nos. 1-65. Defendant also moves for an order awarding monetary sanctions in the amount of \$3,500 against Plaintiff. The Motion is GRANTED, as follows.

Defendant first asserts that Defendant's First Amended Requests for Admission, Set One, Nos. 1-65 should be deemed admitted as against Plaintiff as Plaintiff did not serve timely or verified responses, and that the responses served were not in substantial compliance with Code of Civil Procedure section 2033.220.

Substantial compliance means actual compliance in respect to the substance essential to every reasonable objective of the statute. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779.) The court is to "evaluate qualitatively the proposed response to the RFAs in toto to determine whether it substantially complies with the code. It does not permit the court to segregate each individual RFA response for the purpose of finding that portions of the document are code-compliant (and will therefore be accepted), while concluding that other portions are noncompliance (and will thus be rejected)." (Id. at pp. 779-780.) The court is to review the totality of the response to the requests for admission. (Id. at p. 782.) The court cannot convert a motion to deem requests for admissions admitted into a motion to compel further responses. (Id. at pp. 782-783.)

The assertion of waived objections does not prevent substantial compliance with Section 2033.220 as required by Section 2033.280(c). (Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 909.) "Compliance analysis should prioritize the nature of the substantive answers in the proposed response. While waived objections should be a factor in the assessment, their presence should primarily be addressed through the amount of mandatory monetary

sanctions imposed.” (Id. at pp. 908-909 [proposed responses prefaced with general objections and containing one-word answers (“deny” or “admit”) to all but one of the requests substantially complied with Code of Civil Procedure section 2033.220].)

In addition, in reviewing Plaintiff’s untimely responses to Defendant’s First Amended Requests for Admission, the totality of the responses do not substantially comply with Code of Civil Procedure section 2033.220 as Plaintiff’s responses are not complete and straightforward as the information reasonably available to the responding party permits. The responses do not clearly admit so much of the matter is true, deny so much of the matter that is untrue, or specify if Plaintiff lacks sufficient information or knowledge.

Plaintiff provided no response to Requests for Admission, No. 7.

In addition, in response to Requests for Admission, Nos. 36-65, Plaintiff did not admit, deny, or give lack of information or knowledge as a result for a failure to admit all or part of a request, but instead, asserted the same following objection: “Objection over 35. CCP § 2033.050.” As Plaintiff failed to serve a timely response, this objection is waived.

As Plaintiff’s response is unverified and untimely, and the totality of the response is not in substantial compliance with Code of Civil Procedure section 2033.220, the Court GRANTS Brown & Streza’s motion to deem the matters in its First Amended Requests for Admission, Set One, admitted.

Because Plaintiff’s failure to serve timely, verified responses to Brown & Streza’s Requests for Admission, Set One necessitated the filing of the instant motion, a monetary sanction is mandatory. Brown & Streza’s request for \$3,400 in monetary sanctions for 14 hours on this motion is not reasonable. The Court finds 8.0 hours to draft this motion and separate statement, and 2.0 hours to review any opposition and to draft a reply at an

		hourly rate of \$250 per hour to be reasonable, in addition to a \$60 filing fee. (Liu Decl., ¶ 9.) Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days. Moving party to give notice of the court's ruling on all motions.
108	Favero v. California Friends Homes 2025-01520569	Motion for Preference – DENIED WITHOUT PREJUDICE Plaintiff, Emilio Favero, moves for an order granting Plaintiff trial preference and setting trial 120 days from the date of the hearing on this motion, citing Code of Civil Procedure section 36(a). The action has been stayed as to Defendant California Friends Homes dba Rowntree Gardens and its opposition has not been considered. The action remains as to Defendant Park Regency Care, LLC dba Park Regency Care Center. Plaintiff's reply papers were filed late. (CCP § 1005.) While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (CRC, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (Ibid.) In determining whether to receive an untimely filed document, "trial courts must consider the specific contexts in which such motions arise and should employ a flexible rather than rigid or formalistic approach to decisionmaking." (Kapitanski v. Von's Grocery Co. (1983) 146 Cal.App.3d 29, 32-33.) "An attorney's neglect in untimely filing opposing papers must be evaluated in light of the reasonableness of the attorney's conduct. [Citation.]" (Id. at p. 33.) "Also pertinent are the effects of strict enforcement on the rights of the parties and the furtherance of justice. [Citations.]" (Ibid.) Despite the late service and late filing, the Court exercises its discretion to consider the reply papers.

“(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a).)

“An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36.” (Code Civ. Proc., § 36.5.) “The attorney’s declaration can consist entirely of hearsay and conclusions [citation.]” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2025 Update) § 12:247.1.)

“Admissible evidence is still required as to the party’s age (e.g., declarations by party or admissible records showing the party is over 70). The attorney’s declaration is not sufficient for this purpose.” (Id. § 12:247.3.)

“The standard under subdivision (a), . . . , includes no requirement of a doctor’s declaration.” (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534.) “To the contrary, a motion under subdivision (a) may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citations.]” (Ibid.) “The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that the party’s ‘health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.’ (Italics added.)” (Ibid.)

“Under section 36, subdivision (a), a superior court lacks discretion and ‘shall’ grant preference to a party over 70 years of age upon making a showing, ‘(1) [t]he party has a substantial interest in the action as a whole [, and] [¶]”

(2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.' [Citation.]" (Pabla v. Superior Court of Merced County (2023) 90 Cal.App.5th 599, 602-603.) "The trial court has no power to balance the differing interests of opposing litigants in applying the provision." (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1085–1086, modified (Aug. 17, 1989), modified (Aug. 23, 1989); Fox v. Superior Court (2018) 21 Cal.App.5th 529, 535 ["Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved."].) "The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations." (Ibid.)

Here, there is no dispute that Plaintiff has a substantial interest in this action. (See Declaration of Lukas I. Pick ("Pick Decl."), ¶ 4.)

The moving papers provide insufficient evidence as to Plaintiff's age. Plaintiff's counsel provides that Plaintiff was born on July 31, 1952, and that Plaintiff is currently 73 years old. (Pick Decl., ¶ 2.) Counsel's declaration is insufficient to establish that Plaintiff is over 70 years of age. However, the Supplemental Declaration of Casey M. Moore attaches a copy of Plaintiff's identification card reflecting Plaintiff's date of birth as Exhibit "A". (Supp. Decl. of Casey M. Moore, ¶ 3, Ex. A.) Footnote 1 of the moving memorandum of points and authorities indicates that the identification card is attached as Exhibit "A," but it was omitted. The Court finds the supplemental declaration sufficient to establish Plaintiff is over 70 years of age.

At issue, however, is whether Plaintiff has shown that his health is such that preference is necessary to prevent prejudicing Plaintiff's interest in this action.

The declaration of Plaintiff's counsel provides that Plaintiff has severe medical conditions including "lumbar post laminectomy syndrome, spinal stenosis, chronic pain disorder, and pressure ulcer on his

sacrum.” (Pick Decl., ¶ 2.) Plaintiff’s counsel also states, “[d]ue to the pressure ulcer on his sacrum, his mobility has decreased, and his health has continued to deteriorate.” (Ibid.) Plaintiff’s counsel additionally provides upon “information and belief” after meeting Plaintiff and examining Plaintiff’s medical records from St. Jude Hospital, that Plaintiff will not survive to be alive for trial if this case is not granted preference. (Id., ¶ 3.) Plaintiff’s counsel states, “Plaintiff’s overall health condition has deteriorated since his severe pressure wound on his sacrum and decreased mobility while at the facility, in addition to chronic pain disorder and spinal stenosis, and his health will continue to deteriorate. The medical statistics evidence that plaintiff’s life expectancy will be drastically reduced as a result of the decreased mobility.” (Ibid.)

The prejudice asserted by Plaintiff’s counsel is that Plaintiff’s health is such that Plaintiff may die before trial if not given preference. However, Plaintiff’s counsel statements are insufficient to support that Plaintiff’s medical conditions including “lumbar post laminectomy syndrome, spinal stenosis, chronic pain disorder, and pressure ulcer on his sacrum” are such that Plaintiff’s health is rapidly deteriorating towards death, i.e., the asserted prejudice. In addition, Plaintiff’s counsel’s declaration does not contain sufficient information about Plaintiff’s medical conditions and diagnosis and the manner in which these conditions and/or diagnosis prejudices Plaintiff’s interest in this litigation if preference is not granted. Based on the foregoing, Plaintiff fails to show that preference is necessary to prevent prejudicing Plaintiff’s interest in the litigation.

Therefore, the motion is denied without prejudice.

Defendant, Park Regency Care, LLC dba Park Regency Care Center to give notice.

Case Management Conference

109	Indigo Sports, LLC v. JP International USA, Inc. 2024-01443215	Demurrer to Amended Cross-Complaint Cross-Defendant/Plaintiff Indigo Sports, LLC (“Cross-Defendant”) demurs to the all causes of action alleged in the operative First Amended Cross-Complaint (FACC): (1) fraud in the inducement, (2) failure of consideration, (3) economic duress, (4) declaratory relief, (5) money had and received, and (6) conversion. Cross-Complainant/Defendant JP International USA, Inc. (“Cross-Complainant”) opposes the demurrer. “A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘so long as [it] gives notice of the issues sufficient to enable preparation of a defense.’” [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) As an initial matter, the Court is not persuaded by Cross-Defendant’s argument that the FACC is a sham pleading. The Court finds that the differences between the two pleadings are inconsequential to the causes of action alleged and that the allegations are not contradictory. 1st CAUSE OF ACTION: FRAUD IN THE INDUCEMENT A. Elements of Fraud in the Inducement In California, the essential elements of a fraud cause of action are “(a) a misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (In re Estate of Young (2008) 160 Cal.App.4th 62, 79.)
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“Fraud in the inducement . . . occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable.” (Najarro v. Superior Court (2021) 70 Cal.App.5th 871, 889 [internal quotations omitted].) “In order to escape from its obligations the aggrieved party must rescind.” (Ibid.)

Fraud causes of action must be pled with specificity. “...Fraud causes of action must be pled with specificity. “...This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom and by what means the representations were tendered.’” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the false representations were made.” (State ex rel. Edelweiss Fund, LLC v. JPMorgan Chase & Co. (2023) 90 Cal.App.5th 1119, 1136–1137.) “The complaint must plead the time, place, and contents of the false representations, as well as the identity of the person making the misrepresentation and what he obtained thereby.” (Ibid.)

Here, Cross-Complainant has sufficiently alleged facts in support of each element of the fraud in the inducement cause of action. Cross-Complainant alleges (a) a misrepresentation [¶¶ 3, 10 & 11]; (b) knowledge of falsity [¶ 6]; (c) intent to defraud [¶¶ 6, 7]; (d) justifiable reliance [¶ 12]; and (e) resulting damage [¶ 12]. Cross-Complainant sufficiently stated a cause of action for fraudulent inducement.

B. Defense of Economic Loss Rule

Defendant argues that the first cause of action for fraudulent inducement is barred by the economic loss rule, relying primarily on Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1.

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct

violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 20-21.)

Importantly, "the economic loss rule does not apply to limit recovery for intentional tort claims like fraud. The doctrine only applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage under the limits recognized in Sheen." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 38.)

In Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, however, the court found that the economic loss rule did not bar plaintiff's claim for fraudulent inducement by concealment. Importantly, Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828 governs fraudulent concealment in inducing the formation of a contract whereas Rattagan controls fraudulent concealment within contractual relationships.

Given the holding in Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, the Court finds that economic loss rule does not bar the first cause of action for fraud in the inducement based on the allegation in the FACC. The demurrer to the first cause of action for fraud in the inducement is **OVERRULED**.

2nd CAUSE OF ACTION: FAILURE OF CONSIDERATION

"Failure of consideration is the failure to execute a promise, the performance of which has been exchanged for performance by the other party." (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 230.)

Here, Cross-Complainant alleges that as part of the consideration for the monies paid related to the terms of

the Termination Agreement, Cross-Defendant agreed to provide a “full and accurate financial disclosures.” (FACC, ¶ 14.) “Indigo failed to perform this essential part of the bargain” and therefore Cross-Complainant did not receive some of the consideration that it bargained for in the exchange memorized in the Termination Agreement. (FACC, ¶ 14.)

Given these allegations, the demurrer to the second cause of action for failure of consideration is **OVERRULED**.

3rd CAUSE OF ACTION: ECONOMIC DURESS

“The doctrine of ‘economic duress’ can apply when one party has done a wrongful act which is sufficiently coercive to cause a reasonably prudent person, faced with no reasonable alternative, to agree to an unfavorable contract.” (Crosstalk Productions, Inc. v. Jacobson (1998) 65 Cal.App.4th 631, 644.) “The party subjected to the coercive act, and having no reasonable alternative, can then plead ‘economic duress’ to avoid the contract.” (Ibid.)

Here, Cross-Complainant alleges that “[i]n early 2024, JP International sought to terminate the Golf Management Agreement before its contractual end. Negotiations resulted in a Termination Agreement dated October 31, 2024.” (FACC, ¶ 2.) Cross-Complainant further alleges that “Indigo engaged in wrongful acts and threats that left JP International with no reasonable alternative but to execute the Termination Agreement.” (FACC, ¶ 17.) Such wrongful acts and threats “included Indigo's stated intent to block the reopening of the golf course and to pursue immediate legal action unless JP International signed the agreement. Because the Palm Desert region’s short seasonal revenue window was fast approaching (beginning November), such a closure would have caused devastating financial consequences on JP International for the entire year.” (FACC, ¶ 18.) “JP International had no meaningful alternative to signing the Termination Agreement due to economic coercion applied by Indigo, including threats to cease essential services and to prevent the golf course from reopening

for the season unless the agreement was signed immediately.” (FACC, ¶ 7.)

These allegations are sufficient at this stage in the proceedings. The demurrer to the third cause of action for economic duress is OVERRULED.

4th CAUSE OF ACTION: DECLARATORY RELIEF

“A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties under a written instrument and requests that these rights and duties be adjudged by the court.” (Leonard Carder, LLP v. Patten, Faith & Sandford (2010) 189 Cal.App.4th 92, 97.)

“Declaratory relief is available to ‘[a]ny person interested under a written instrument ... who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property ... in cases of actual controversy relating to the legal rights and duties of the respective parties’ ” (Camden Systems, LLC v. 409 North Camden, LLC (2024) 103 Cal.App.5th 1068, 1078–1079, reh'g denied (Aug. 8, 2024) [citing Code Civ. Proc., § 1060].) “Declaratory relief pursuant to this section has frequently been used as a means of settling controversies between parties to a contract regarding the nature of their contractual rights and obligations.” (Id., 1079.)

Here, Cross-Complainant sufficiently states a claim for declaratory relief. Cross-Complainant alleges a dispute over the contractual rights and obligations between the parties regarding the Termination Agreement. Specifically, Cross-Complainant alleges that “[a]n actual and justiciable controversy has arisen between JP and Indigo regarding their respective rights and obligations under the Termination Agreement.” (FACC, ¶19.) Cross-Complainant further alleges that it contends that the “agreement is void and unenforceable due to fraud, duress, and failure of consideration.” (FACC, ¶ 20.) “A judicial declaration is necessary to determine whether JP remains bound by the Termination Agreement and

whether Indigo is entitled to the amounts it claims under the agreement. The Termination Agreement contains an attorney fee clause, and, pursuant to the same, Cross-Complainant is entitled to an award of reasonable attorney fees.” (FACC, ¶ 21.)

The demurrer to the fourth cause of action for declaratory relief is **OVERRULED**.

5TH CAUSE OF ACTION: MONEY HAD AND RECEIVED

Cross-Complainant’s fifth cause of action is for money had and received.

“A common count for money had and received is not a specific cause of action ...; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness.” (Camden Systems, LLC v. 409 North Camden, LLC (2024) 103 Cal.App.5th 1068, 1082, reh'g denied (Aug. 8, 2024) [internal quotations omitted].) “Although such an action is one at law, it is governed by principles of equity.” (Ibid.)

“A cause of action for money had and received is stated if it is alleged [that] the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff.” (Camden Systems, LLC v. 409 North Camden, LLC (2024) 103 Cal.App.5th 1068, 1082, reh'g denied (Aug. 8, 2024) [internal quotations omitted]; Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 230 [““To prevail on a common count for money had and received, the plaintiff must prove that the defendant is indebted to the plaintiff for money the defendant received for the use and benefit of the plaintiff.”].) “The claim is viable wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.” (Ibid.) “[T]he plaintiff must prove that the defendant received money ‘intended to be used for the benefit of [the plaintiff],’ that the money was not used for the plaintiff’s benefit, and that

the defendant has not given the money to the plaintiff.” (Ibid.)

Here, Cross-Complainant alleges that “Indigo received funds from JP International for services and expenses that were unauthorized, duplicative, or improperly charged, including the amounts set forth in paragraph 5 above.” (FACC, ¶ 24.) Paragraph 5 states:

“For example, Indigo failed to account for significant overpayments and questionable charges, including \$240,476.56 in "Account Services" expenses, \$52,190.17 paid - to Troon Golf without JP's consent, and \$9,888.68 in duplicate payroll payments. These overcharges were discovered only after execution of the Termination Agreement.” (FACC, ¶ 5.)

Based on the above, Cross-Complainant has sufficiently stated a cause of action for money had and received. The demurrer to the fifth cause of action for money had and received is OVERRULED.

6TH CAUSE OF ACTION: CONVERSION

“Conversion is the wrongful exercise of dominion over the property of another.” (Los Angeles Federal Credit Union v. Madatyan (2012) 209 Cal.App.4th 1383, 1387.) “The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages. Conversion is a strict liability tort.” (Ibid.)

Importantly, “the foundation of the action rests neither in the knowledge nor the intent of the defendant” and “[t]herefore, questions of the defendant’s good faith, lack of knowledge, and motive are ordinarily immaterial.” (Los Angeles Federal Credit Union v. Madatyan (2012) 209 Cal.App.4th 1383, 1387.)

“Money can be the subject of a conversion action if a specific, identifiable sum is involved.” (Ortega v. Toyota Motor Sales, USA, Inc. (S.D. Cal. 2008) 572 F.Supp.2d 1218, 1220.) However, “the simple failure to pay money

		owed does not constitute conversion.” (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 284.) Similarly, “a mere contractual right of payment, without more, will not suffice.” (Farmers Ins. Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 452.) Rather, “[a] cause of action for conversion of money can be stated only where a defendant interferes with the plaintiff’s possessory interest in a specific, identifiable sum, such as when a trustee or agent misappropriates the money entrusted to him.” (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 284.) Here, Cross-Complainant alleges that “Indigo wrongfully retained funds that were earmarked for legitimate golf course operations but instead applied them to unauthorized accounts or duplicate payroll.” (FACC, ¶ 27.) Cross-Complainant further alleges that “Indigo exercised dominion and control over JP’s funds in a manner inconsistent with JP’s rights, causing damages.” (FACC, ¶ 28.) Based on these allegations, the demurrer to the sixth cause of action for conversion is OVERRULED. Cross-Defendant shall file an answer to the FACC within 20 days of notice of this ruling. Cross-Complainant to give notice. Case Management Conference
110	Johnson v Connie, LLC 2022-01248762	Motion to Consolidate -DENIED
111	Johnson v. Zelaya 2026-01541888	Motion to Consolidate - DENIED Plaintiff Randy R. Johnson moves to consolidate Johnson v. Connie, LLC, et al., Case No. 22-01248762 with Johnson v. Zelaya, et al., Case No. 26-01541888. When there are two or more actions that involve common questions of law or fact, a court may order them to be consolidated, or order a joint trial, or issue orders

necessary to avoid unnecessary costs or delay. (CCP § 1048(a).)

In the older action (Case No. 22-01248762), the sole cause of action at issue is for violation of Penal Code section 496. Plaintiff alleges that Connie, LLC and Old Newport Realty dba Genuine Property Management (“GPM”) received property that had been obtained in a manner constituting theft or extortion by demanding that Plaintiff pay monthly rent of \$2,450 starting May 1, 2021, despite the existence of a written lease starting on March 1, 2021 with a monthly rent of \$1,025. Plaintiff alleges that he paid the amount demanded out of duress and fear of eviction.

In the newer action (Case No. 26-01541888), Plaintiff asserts causes of action for violation of the Costa Mesa Tenant Protection Act (CMTPA), wrongful eviction, negligence, and unfair competition. Plaintiff alleges that the CMTPA prohibits termination of tenancy without just cause if a tenant has continuously and lawfully occupied a residential real property for 12 months, and that Defendants Lissa Starnes Zelaya, Heidi Berth Starnes Izzi, Robin Lynn Evans, Todd L. Starnes, and Connie, LLC (the “Zelaya Defendants”) did not have just cause to evict him. Thus, Plaintiff alleges that his December 2024 eviction was wrongful and the Zelaya Defendants violated the UCL by violating a municipal ordinance. Alternatively, Plaintiff alleges the Zelaya Defendants owed a duty of care not to obstruct Plaintiff’s quiet enjoyment of the property and breached that duty by failing to exercise due diligence in hiring property manager Genuine Property Management.

In the older action, trial will involve questions of whether Defendants Connie, LLC and GPM received property that had been obtained in any manner constituting theft or extortion with knowledge that the property was so obtained. The relevant rent payments were made between March 1, 2021 through March 1, 2022.

In the newer action, trial will involve issues concerning whether the Zelaya Defendants violated the CMPTA in

their attempts to recover the premises and have Plaintiff vacate as a tenant. Conduct underlying the alleged wrongful eviction began on March 1, 2022, when Zelaya Defendants began serving 60-day notices to terminate. Specifically, Plaintiff alleges that the Zelaya Defendants' notices violated the CMPTA by relying on a provision that did not apply, failing to identify the "owner," who must be a natural person, failing to notify Plaintiff that he may request proof that the intended occupant was an owner or related to the owner, failing to notify Plaintiff of his right to relocation assistance, and incorrectly calculating the fair market rent for Plaintiff's unit.

The two cases do not involve common questions of law or fact. The newer case will require evidence related to what was contained in the notices provided to Plaintiff and whether Plaintiff's unit was taken over by an owner or an occupant related to the owner such that the Zelaya Defendants had just cause. On the other hand, in the older case, Plaintiff must present evidence regarding Connie, LLC's and GPM's knowledge and criminal intent with regard to receipt of rent payments, not Plaintiff's removal as a tenant.

Plaintiff argues that evidence of the illegal rent increases will be relevant in the newer action to support the imposition of treble damages and punitive damages. Section 9-408 of the CMTPA provides that an owner who attempts to recover possession of a rental unit in material violation of this Article shall be liable to a tenant for treble damages and punitive damages "[u]pon a showing that the owner has acted willfully or with oppression, fraud, or malice[.]" However, evidence of the rent increases are not relevant to whether the Zelaya Defendants attempted to recover possession of a rental unit in material violation of the CMPTA. Plaintiff also argues that evidence regarding the subsequent eviction will be relevant to the illegal rent increase case because it can support a finding that Connie, LLC and GPM acted with criminal intent. However, evidence of the eviction has no relation to whether Connie, LLC and GPM acted with criminal intent over two years prior or whether they knowingly received money obtained in any manner constituting theft or extortion.

		In light of the above, the Court finds that the two actions do not involve common questions of law or fact. Thus, the motion to consolidate is DENIED. Moving party to give notice.
112	Nguyen v. Le 2024-01420730	Motions to Be Relieved as Counsel of Record - GRANTED The unopposed motions of attorney William Kersten of Kersten & Associates to be relieved as counsel for Defendants Lan Le and Tiffany Le are GRANTED. Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the clients. Moving attorney to give notice.
113	Nguyen v. Westminster Manor Apartment 2024-01442534	Motion for Summary Judgment and/or Adjudication - DENIED Defendant WESTMINSTER MANOR APARTMENT (hereinafter “Defendant”) moves for summary judgment on the grounds that the parties entered a GENERAL RELEASE OF CLAIMS AND WAIVER pursuant to Civil Code section 1542 on August 1, 2024 which extinguished all of Defendant’s obligations to Plaintiff, including, but not limited to water intrusion and damage, mold, gas leak, and any alleged injury, discomfort, or inconvenience, suffered by Plaintiff during her tenancy through the date of vacating the premises. The court notes that service of the motion may not have been proper. When utilizing electronic service, the proof of electronic service may be made in essentially the same manner as provided for service of papers by mail (CCP § 1013a), except that the declaration of service does not need to state that the person making the service is not a party to the action, and must state:

- — the electronic service address of the person making the service in addition to that person's residence or business address;
 - — the date of the electronic service;
 - — the name and electronic service address of the person served; and
 - — that the document was served electronically.
- [CCP § 1013b(a), (b); CRC 2.251(j)(1)]

Here, Defendant fails to list the electronic service address of the person making the service in the proof of service.

As to the merits, a defendant moving for summary judgment must “show” that either:

- one or more elements of the “cause of action ... cannot be established”; OR
- there is a complete defense to that cause of action. [CCP § 437c(p)(2)]

Defendant argues there is a complete defense to the Plaintiff's cause of action for Negligence: “the Release has extinguished Ms. Nguyen's negligence cause of action for alleged water intrusion and damage, mold, and gas leak and WMA is entitled to summary judgment.” (Motion page 6:10-12.)

Notably, to “show” a complete defense, defendant must present admissible evidence of each essential element of the defense upon which it bears the burden of proof at trial. [Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 289.]

Thus, where a defense has several elements, lack of substantial evidence on any element bars relief, “even if the plaintiff failed to introduce a scintilla of evidence challenging that element.” [Huynh v. Ingersoll-Rand (1993) 16 Cal.App.4th 825, 831; Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.]

Additionally, the moving party's declarations and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff's claim “in order to resolve any evidentiary

doubts or ambiguities in plaintiff's [opposing party's] favor." [Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64, 74.]

Defendant's Answer, filed on 4/23/2025, did not include the Defense of Release. (See ROA 10.) Pursuant to Baker v. Ferrel (1947) 78 Cal.App.2d 578, 579, "a release is an affirmative defense which must be specially pleaded".

Moreover, Defendant fails to set forth, let alone address, the elements of the affirmative defense of Release. Defendant cites to Civ. Code § 1541; see Skrbina v. Fleming Companies (1996) 45 Cal.App.4th 1353, 1366.)

In Skrbina, the Court of Appeals explained: "Civil Code section 1541 provides: "An obligation is extinguished by a release therefrom given to the debtor by the creditor, upon a new consideration, or in writing, with or without new consideration." In general, a written release extinguishes any obligation covered by the release's terms, provided it has not been obtained by fraud, deception, misrepresentation, duress, or undue influence. "The general rule is that when a person with the capacity of reading and understanding an instrument signs it, he is, in the absence of fraud and imposition, bound by its contents, and is estopped from saying that its provisions are contrary to his intentions or understanding; but it is also a general rule that the assent of a party to a contract is necessary in order that it be binding upon him, and that, if the circumstances of a transaction are such that he is not estopped from setting up his want of assent, he can be relieved from the effect of his signature if it can be made to appear that he did not in reality assent to it." [Citations.]" (Skrbina v. Fleming Companies (1996) 45 Cal.App.4th 1353, 1366–1367.)

Here, Defendant simply argues, "The unambiguous language of the Release recites that a dispute between Ms. Nguyen and WMA arose related to water intrusion and damage, mold, and alleged gas leak. (Release Sections B and C.)" [Motion page 6:3-6.]

However, Defendant has not established Plaintiff read and understood the instrument, or that there was an absence of fraud, deception, misrepresentation, duress or undue influence.

More importantly, the Release has not been properly authenticated. While all that is required to authenticate a writing is that there be “evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is” (Evid.Code § 1400; see Landale-Cameron Court, Inc. v. Ahonen (2007) 155 Cal.App.4th 1401, 1409), Defendant has failed to do so.

In support of the Motion, Defendant submits the Declaration of Krystalynn Phan “an employee” of “Aynem Investments LP” which owns the Westminster Manor Apartment property. While Ms. Phan declares “The facts set forth herein are based on my personal knowledge”, this form allegation is merely the declarant's conclusion. It is not sufficient to show the declarant's competency she has not established the facts stated are matters as to which she would presumably have knowledge. [Snider v. Snider (1962) 200 Cal.App.2d 741, 753-754.]

Ms. Phan fails to set forth her job title, or that she worked for Defendant at the time the lease documents or release were executed. She does not appear to be a witness to the execution of the release itself. She did not sign the release. Also, although she mentions the release at ¶5 of her Declaration, she does not state, for example, “Attached hereto as Exhibit A is a true and correct copy of the Release.”

As such, Ms. Phan does not appear to have personal knowledge of the facts attested to, and the evidence submitted in the Notice of Lodging (ROA 38) has not been authenticated.

Therefore, the burden did not shift to Plaintiff to create a triable issue of material fact, and the Motion for Summary Judgment is DENIED.

Court to give notice.

114	Yeo v. Jack in the Box, Inc. 2024-01438639	Motion for Summary Judgment and/or Adjudication - DENIED Defendant JDC Food Services, Inc. dba Jack in the Box (“Defendant”) moves for summary judgment against plaintiff Marie Ann Yeo’s (“Plaintiff”) causes of action for negligence and premises liability. This action arises out of a trip and fall at one of Defendant’s restaurants. Plaintiff alleges that her sandal got stuck between the floor and a table leg when she stood up, causing her to fall on her knee. The Court will not consider Plaintiff’s unpermitted and improper sur-reply filed on May 22, 2026. Defendant argues Plaintiff’s premises liability and negligence causes of action fail as a matter of law because the table base sits roughly less than 3/4 inches off the ground such that the alleged dangerous condition was trivial, the table base was open and obvious, there was no foreseeability of Plaintiff’s injury, and Defendant had no actual or constructive notice of a dangerous condition. Plaintiff testified that she saw the table and table legs as she walked up to the table. (Declaration of Caryn Ochoa, Exhibit C, at 15:21-16:4.) Plaintiff recalls the dining area as being well-lit. (Id. at 16:5-7.) There was no debris blocking Plaintiff’s view of the table or table legs. (Id. at 15:13-20.) Plaintiff estimated the toe portion of her sandal to be approximately half an inch thick or less. (Id. at 18:1-19:6.) Defendant points to the fact that the table base is roughly less than 3/4 inches off the ground to argue that the condition is a trivial defect. However, Plaintiff is alleging that her sandal got caught underneath the table base when she stood up. Therefore, the height of the table base from the top of the base to the floor is not relevant here. The relevant question is whether there was a large enough gap between the bottom of the base and the floor to create a dangerous tripping hazard caused by shoes getting caught. Defendant has not presented any evidence regarding the size of that gap.
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Defendant argues that photographs of the area clearly support the conclusion that the defect of the rise of the table base from the floor did not pose a significant risk of injury. However, the photographs submitted do not clearly depict how high the gap between the floor and the bottom of the base, where Plaintiff alleges she sandal got caught, is. Further, while Plaintiff testified that she observed the table and its legs as she walked up to the table, there is no evidence that she observed any gap between the table leg and the floor. Thus, the Court finds that Defendant's arguments that reasonable minds could come to but one conclusion that there was no dangerous condition or that the condition was open and obvious because Plaintiff saw the table and table legs fail. (Mixon v. Pacific Gas & Electric Co. (2012) 207 Cal.App.4th 124, 131; Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 673.)

Further as to Defendant's open and obvious argument, typically, "if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (Kinsman, 37 Cal.4th at p. 673.) However, there is an exception to this general rule. "[I]t is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger." (Ibid.) It is plainly foreseeable that patrons at the restaurant will sit at the tables provided and encounter the table legs underneath the table while doing so. Thus, Defendant's open and obvious argument also lacks merit because Plaintiff was forced to encounter the area around the table legs by sitting at the table in the dining area, which is plainly offered to restaurant patrons. Defendant's argument that Plaintiff's injuries and the incident were not foreseeable fails for the same reason.

Defendant argues that it had no actual or constructive notice of the dangerous condition because no other

patron has ever injured themselves during the 14 years that the subject table has been in the restaurant.

Store owners “must have actual or constructive notice of the dangerous condition before incurring liability” and it is a plaintiff’s “burden to prove the owner had actual or constructive notice of the defect in sufficient time to correct it.” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1203.) “The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence.” (Id. at p. 1206.)

Here, Defendant concedes that the table has been in the restaurant for 14 years, which is a sufficient period of time to charge Defendant with constructive knowledge of its existence. Further, while evidence of prior accidents could support a finding of dangerousness of a condition, the absence of prior accidents alone is not dispositive. Therefore, the Court finds that Defendant’s argument of lack of notice also fails.

The Court declines to rule on Defendant’s evidentiary objections pursuant to Code of Civil Procedure section 437(q).

In light of all the above, Defendant’s motion is DENIED.

Moving party to give notice.